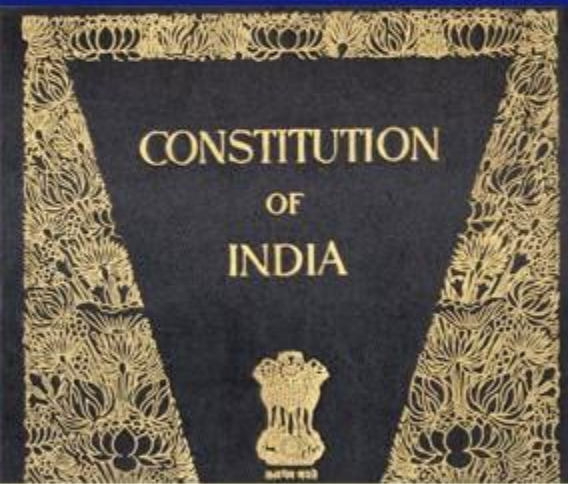


INDIAN POLITY



MODULE - 37

FUNDAMENTAL RIGHTS
▪ **ARTICLE 22**

FUNDAMENTAL RIGHTS

PROTECTION AGAINST ARREST AND DETENTION

ARTICLE 22

This Article has two parts- the first part deals with the cases of ordinary law.



1

The first part of Article 22 confers the following rights on a person who is arrested or detained under an ordinary law:

- i. Right to be informed of the grounds of arrest.
- ii. Right to consult and be defended by a legal practitioner.
- iii. Right to be produced before a magistrate within 24 hours, excluding the journey time.
- iv. Right to be released after 24 hours unless the magistrate authorizes further detention.

INDIAN POLITY

FUNDAMENTAL RIGHTS

PROTECTION AGAINST ARREST AND DETENTION

ARTICLE 22



- 2 These safeguards are not available to an enemy alien or a person arrested or detained under a preventive detention law.
- 3 The Supreme Court also ruled that the arrest and detention in the first part of Article 22 do not cover arrest under the orders of a court, civil arrest, arrest on failure to pay the income tax and deportation of an alien.
- 4 They apply only to an act of a criminal or quasi-criminal nature or some activity prejudicial to public interest.

FUNDAMENTAL RIGHTS

PROTECTION AGAINST ARREST AND DETENTION

ARTICLE 22

The Second Part of Article 22 grants protection to persons who are arrested or detained under a preventive detention law.

5 This protection is available to both citizens as well as aliens and includes the following:

- i. The detention of a person cannot exceed three months unless an advisory board reports sufficient cause for extended detention. The board is to consist of judges of a high court.
- ii. The grounds of detention should be communicated to the detenu. However, the facts considered to be against the public interest need not be disclosed.
- iii. The detenu should be afforded an opportunity to make a representation against the detention order.

FUNDAMENTAL RIGHTS

PROTECTION AGAINST ARREST AND DETENTION

ARTICLE 22

6 Article 22 also authorizes the Parliament to prescribe

- a) The circumstances and the classes of cases in which a person can be detained for more than three months under a preventive detention law without obtaining the opinion of an advisory board.
- b) The maximum period for which a person can be detained law and
- c) The procedure to be followed by an advisory board in an inquiry.

7 The 44th Amendment Act of 1978 has reduced the period of detention without obtaining the opinion of an advisory board from three to two months. However, this provision has not yet been brought into force, hence, the original period of three months still continues.

8 The Constitution has divided the legislative power with regard to preventive detention between the Parliament and State legislatures.

FUNDAMENTAL RIGHTS

PROTECTION AGAINST ARREST AND DETENTION

ARTICLE 22



PARLIAMENT OF INDIA



9 The Parliament has exclusive authority to make a law of preventive detention for reasons connected with defence, foreign affairs and the security of India.

10 Both Parliament as well a State Legislatures can concurrently make a law of preventive detention for reasons connected with security of state, the maintenance of public order and the maintenance of supplies and services essential to the community.

FUNDAMENTAL RIGHTS

HISTORY OF PREVENTIVE DETENTION IN INDIA

ARTICLE 22

- 1 Detention without trial was not a new idea introduced by the makers of our Constitution for the first time.
- 2 It was in existence since the early days of British India under the **notorious Bengal Regulation of 1818** and similar such enactments in Madras and Bombay, which gave the powers to the Government to detain a person on suspicion.
- 3 Then came, Rule 26 under the **Defence of India Act 1939** which authorized the Government to detain a person if it was satisfied that such detention was necessary to prevent him from acting in any manner prejudicial to the defence and safety of the Country.
- 4 This was of course a war-time measure modelled on similar legislation in England during World War-II.

FUNDAMENTAL RIGHTS

HISTORY OF PREVENTIVE DETENTION IN INDIA

ARTICLE 22



5 But even after the cessation of the war, the preventive detention was continued in India as an instrument to suppress breach of public order and public safety.

6 The framers of our Constitution painfully visualized the circumstances when India got independence which had necessitated such abnormal legislation.

7 It is well-known that during India's independence we had to face many anti-social and subversive forces of communal madness involving colossal loss of lives and property.

FUNDAMENTAL RIGHTS

HISTORY OF PREVENTIVE DETENTION IN INDIA

ARTICLE 22



***Bloodshed during Partition forced
the framers to include Preventive
Detention clause***

8 In order to save the infant republic from the inroads of any such subversive elements, this power had to be conferred upon the State.

9 But the framers of the Constitution improved upon their existing law by **subjecting the power of preventive detention to certain constitutional safeguards** upon the violation of which the individual could have a right to approach the Supreme Court or the High Courts because the safeguards are the fundamental rights and the enforcement of such a fundamental right is itself a constitutional remedy.

ARTICLE 22

FUNDAMENTAL RIGHTS

WHY SO MANY PREVENTIVE DETENTION LAWS IN INDIA?

- 1 The above provisions of the Constitution with regard to Article 22 are not self executory but require a law to be made by the legislature, confirming to the conditions laid down in the Article and Preventive Detention can exist only so long as the legislature permits.
- 2 The **Preventive Detention Act ,1950** was thus passed by the Indian parliament which constituted the law of preventive detention in India.
- 3 It was a temporary act originally passed for one year only.
- 4 Several times since then the term of the Act was extended until it expired at the end of 1969.
- 5 The revival of anarchist forces obliged the Parliament to enact a new act named the **"Maintenance of Internal Security Act"** popularly known as "MISA" in the year of 1971 having provisions broadly similar to those of the Preventive Detention Act of 1950.

ARTICLE 22

FUNDAMENTAL RIGHTS

WHY SO MANY PREVENTIVE DETENTION LAWS IN INDIA?



Lalu Prasad Yadav was one of the famous personality tried under MISA

- 6 In 1974, Parliament passed the **Conservation of Foreign Exchange And Prevention of Smuggling Activities Act, 1974** commonly referred to as the “COFEPOSA”.
- 7 While the “MISA” was in general aimed at subversive activities, the “COFEPOSA” is aimed at anti-social activities like smuggling, racketing in foreign exchange etc.
- 8 “MISA” was repealed in 1978 but “COFEPOSA” still remains.

ARTICLE 22

FUNDAMENTAL RIGHTS

WHY SO MANY PREVENTIVE DETENTION LAWS IN INDIA?

- 9** Further, power of Preventive Detention has been conferred only the Central and State Governments to safeguard defence and security of the Country and to maintain public order and essential supplies and services by enacting the **National Security Act, 1980**, and the **Prevention of Black Marketing and Maintenance of Supplies of Essential Commodities Act, 1980**.
- 10** With the increase in terrorist activities, the Government had to pass in 1985 the **Terrorist and Disruptive Activities (Prevention) Act, 1985** commonly called "TADA". This Act has been widely used to curb terrorism.
- 11** However, "TADA" was repealed in 1995. For the same purposes, the **Prevention of Terrorism Act, 2002** commonly called "POTA" was enacted on March 28th, 2002 but that too was repealed in the year 2004.

FUNDAMENTAL RIGHTS

PREVENTIVE DETENTION LAWS IN INDIA

ARTICLE 22

- 1** The Preventive Detention laws made by the Parliament are:
 - a) Preventive Detention Act, 1950. Expired in 1969.
 - b) Maintenance of Internal Security Act (MISA) 1971. Repealed in 1978
 - c) Conservation of Foreign Exchange and Prevention of Smuggling Activities Act (COFE-POSA), 1974
 - d) National Security Act (NASA), 1980.
 - e) Prevention of Black-marketing and Maintenance of Supplies of essential Commodities Act (PBMSECA), 1980
 - f) Terrorist and Disruptive Activities (Prevention) Act (TADA), 1985, Repealed in 1995.
 - g) Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic substance Act (PITNDPSA), 1988.
 - h) Prevention of Terrorism Act (POTA), 2002. Repealed in 2004.

FUNDAMENTAL RIGHTS

PREVENTIVE DETENTION LAWS IN INDIA



- 2 It is unfortunate to note that no democratic country in the world has made preventive detention as an integral part of the Constitution as has been done in India.
- 3 It was resorted to in Britain only during first and second world war time.
- 4 In India, preventive detention existed even during the British rule. For Example: The Bengal State Prisoners Regulation of 1818 and the Defence of India Act of 1939 provided for preventive detention.

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